

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X
LAKESHA BLADES,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD POLICE OFFICER
RICHARD KISSANE, Shield No. 30366, NYPD POLICE
OFFICER JASON GARCIA, Shield No. 18851, NYPD
POLICE OFFICER DANILO MCLEISH, Shield No.
11531 and NYPD POLICE OFFICERS JOHN DOES
NUMBERS ONE THROUGH TEN,

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Bronx
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
July 25, 2022

Yours, etc.
Cary London
Cary London, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

POLICE OFFICER RICHARD KISSANE, Shield No. 30366, 105th Precinct, 92-08 222nd St, Queens Village, NY 11428

POLICE OFFICER JASON GARCIA, Shield No. 18851, 48th Precinct, 450 Cross Bronx Expressway, The Bronx, NY 10457

POLICE OFFICER DANILO MCLEISH, Shield No. 11531, 48th Precinct, 450 Cross Bronx Expressway, The Bronx, NY 10457

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff LAKESHA BLADES, by his attorneys, Shulman-Hill, PLLC, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On December 15, 2020, at approximately 5:00 p.m., Plaintiff Lakesha Blades, while lawfully in the vicinity of 2405 Crotona Ave 13, County of Bronx, New York, was subject to an unlawful arrest, detention, assault, battery and excessive use of force by defendant Police Officers. In doing so, defendant Police Officers injured Plaintiff, causing serious physical injury necessitating hospital treatment. Plaintiff was deprived of her constitutional, common law and statutory rights when the individual defendants unlawfully stopped, detained, assaulted, battered and subjected to excessive force in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff Lakesha Blades is a resident of the state of New York.

3. NYPD Police Officer Richard Kissane, Shield No. 30366, is and was at all times relevant herein an Officer with the New York City Police Department.

4. NYPD Police Officer Richard Kissane, Shield No. 30366, is being sued in their individual and official capacity.

5. At all times relevant herein, NYPD Police Officer Richard Kissane, Shield No. 30366, was assigned to the 48th Police Precinct of the NYPD.

6. Currently, NYPD Police Officer Richard Kissane, Shield No. 30366, is assigned to the 105th Police Precinct of the NYPD

7. NYPD Police Officer Jason Garcia, Shield No. 18851, is and was at all times relevant herein an Officer with the New York City Police Department.

8. NYPD Police Officer Jason Garcia, Shield No. 18851, is being sued in their individual and official capacity.

9. Currently and at all times relevant herein, NYPD Police Officer Jason Garcia, Shield No. 18851, was assigned to the 48th Police Precinct of the NYPD.

10. NYPD Police Officer Danilo McLeish, Shield No. 11531, is and was at all times relevant herein an Officer with the New York City Police Department.

11. NYPD Police Officer Danilo McLeish, Shield No. 11531, is being sued in their individual and official capacity.

12. Currently and at all times relevant herein, NYPD Police Officer Danilo McLeish, Shield No. 11531, was assigned to the 48th Police Precinct of the NYPD.

13. NYPD Police Officers John Does Numbers One through ten are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

14. Police Officers John Does Numbers one through ten are being sued in their individual and official capacities.

15. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

16. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible.

The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

17. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the City of New York in compliance with the Municipal Law Section 50 and in accordance with New York State law.

18. In accordance with New York State law and General Municipal Law Section 50, Plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on July 22, 2021.

19. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claims.

20. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

21. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

22. On December 15, 2020, at approximately 5:00 p.m., Plaintiff Lakesha Blades, while lawfully in the vicinity of 2405 Crotona Ave 13, County of Bronx, New York, when the defendant Police Officers unlawfully assaulted Plaintiff without legal justification.

23. Plaintiff had gone to take out the garbage downstairs, when her tenant had an incident with her that had escalated to the point where it was physical, and she felt threatened.

24. Plaintiff was hit by her tenant four times, sustaining serious physical injuries visible to the naked eye.

25. Plaintiff called 911 herself at approximately 4:50 because following the altercation with a tenant she felt unsafe.

26. Plaintiff was in front of the building downstairs when approximately five to eight defendant Police Officers arrive.

27. Officers Kissane, Garcia and McLeish were among this initial group of officers who arrived and spoke to Plaintiff.

28. Plaintiff informed the defendant Police Officers where the apartment was of her tenant who attacked her.

29. The defendant Police officers were extremely dismissive, and none accompanied her when she needed to go upstairs to her apartment to check on her children and treat her injuries she received.

30. Plaintiff decided she needed professional medical attention and informed defendant Police Officer who then radioed for emergency medical services.

31. Emergency Medical Technicians (“EMTs”) arrived and began to treat Plaintiff in the stairwell of the apartment building.

32. The EMTs said they needed gauze, and Plaintiff said she had some medical stuff in her apartment that she could bring out and give to them, so they do not need to go all the way back down to the ambulance.

33. When Plaintiff got up to go retrieve the gauze, the defendant Police Officers began to approach Plaintiff in an extremely aggressive manner.

34. Plaintiff, without warning or reason, was suddenly grabbed by defendant Police Officers.

35. Defendant Police Officer Richard Kissane, Shield No. 30366, and defendant Police Officer Danilo McLeish, Shield No. 11531, became physically aggressive and grabbed Plaintiff’s wrists, slammed her into the wall, and dragged her into the hallway.

36. Defendant Police Officers broke a wall in Plaintiff’s apartment because of their physical force.

37. Defendant Police Officer Jason Garcia, Shield No. 18851, then slammed her on the floor, used a chokehold against her and put a taser to her face.

38. Plaintiff at no point resisted arrest.

39. Defendant Police Officers put Plaintiff’s children in the hallway and slammed one of Plaintiff’s children, age 11, against the wall with their hands behind their back.

40. Plaintiff was roughly grabbed, handcuffed and physically dragged out of the building.

41. Defendant Police Officers were using offensive and explicit language towards Plaintiff.

42. Plaintiff was not informed what she was being charged with.

43. Plaintiff was brought to the 48th Precinct and remained there for approximately three hours.

44. Plaintiff remained handcuffed the entire three hours, besides when she used the restroom.

45. Plaintiff was told by defendant Police Officers that once they viewed the video of the altercation, and it shows she did not start anything and could leave.

46. Plaintiff was not given any type of paperwork from the 48th Precinct when she was released.

47. When Plaintiff arrived back at home, she noticed she had a lump on her head, her body was achy, her ribs were hurting, and her entire body was in excruciating pain.

48. On December 16, 2020, Plaintiff sought medical attention and called an ambulance to go to St. Barnabas Hospital because she was in a lot of pain following the multiple alternations the previous day.

49. Plaintiff was suffering pain in her head, face, and mouth.

50. At St. Barnabas Hospital Plaintiff got x-rays and an MRI taken, along with some pills to take for the pain when needed.

51. Plaintiff tries not to take the pills because she has children, she needs to care for but it still in excruciating pain.

52. The wall in Plaintiffs apartment is still broken, as a result of defendant Police Officers excessive physical force.

53. Plaintiff was billed approximately \$782.50 in medical expenses.

54. As a result of this incident and of the injury caused therein, Plaintiff suffered significant emotional distress and has started seeing a therapist weekly.

55. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

56. At no point did Defendant Officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

57. Nevertheless, Plaintiff was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause, unlawfully fingerprinted, photographed and searched, and unlawfully detained.

58. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to

prevent their fellow officers from unjustifiably assaulting, battering, and using excessive force against Plaintiff.

59. The unlawful assault, battery, and use of excessive force by the individually named defendants caused Plaintiff to sustain physical, psychological, and emotional trauma.

FIRST CAUSE OF ACTION
Unlawful Stop, Question, and Search

60. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

61. The illegal approach, pursuit, stop and grab employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

62. The conduct of defendants in approaching, stopping, and grabbing Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

63. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

64. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

65. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SECOND CAUSE OF ACTION
Violation of Fourth and Fourteenth Amendment Rights:
Unlawful Seizure and Deprivation of Liberty

66. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

67. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

68. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

THIRD CAUSE OF ACTION

False Imprisonment

69. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

70. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

71. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

72. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

73. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

74. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights: Excessive Force

75. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

76. The use of excessive force by defendants by, amongst other things, roughly handcuffing, grabbing and throwing Plaintiff into a vehicle and slamming Plaintiff's body against the floor constituted objectively unreasonable physical seizures of Plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

77. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION**Assault**

78. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

79. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff, that such acts caused apprehension of such contact in the Plaintiff.

80. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

81. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

82. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

83. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION**Battery**

84. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

85. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner tased Plaintiff, roughly handcuffing, grabbing and throwing Plaintiff into a vehicle and slamming Plaintiff's body against the floor brutally effecting an arrest of Plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and caused such battery.

86. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

87. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

88. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

89. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION **Negligent Infliction of Emotional Distress**

90. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

91. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

92. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

93. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

94. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

95. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

96. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION **Negligent Hiring, Retention, Training and Supervision**

97. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

98. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

99. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

NINTH CAUSE OF ACTION

Failure to Intervene

100. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

101. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

102. Defendants failed to intervene to prevent the unlawful conduct described herein.

103. As a result of the foregoing, Plaintiff's suffered serious, debilitating and permanent injury, his liberty was restricted for an extended period of time, he was put in fear of his safety, his injuries worsened, he did not receive necessary medical treatment, and he was humiliated and subject to other physical constraints.

104. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

105. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

106. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

107. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION

Deliberate Indifference to Medical Needs

108. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

109. Defendants despite being aware that Plaintiff was suffering from the physical assault of her tenant and was in the process of getting medical treatment from EMTs and needed additional treatment from medical professionals, delayed Plaintiff's medical treatment and refused to administer and properly procure immediate and adequate medical attention.

110. The delay in medical treatment to Plaintiff's injuries resulted increased severity in Plaintiff's injuries that were suffered by Plaintiff that would have been prevented if Plaintiff received treatment in a timely manner.

111. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

112. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

113. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

114. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

ELEVENTH CAUSE OF ACTION

Violation of Article I, § 12 of the New York State Constitution

115. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

116. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of her person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- iv. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

117. As a direct and proximate result of defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered physical, economic and emotional injuries, as well as a deprivation of liberty.

118. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

119. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

JURY DEMAND

120. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff LAKESHA BLADES demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law, and that the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
July 25, 2022

By: Cary London
Cary London, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

POLICE OFFICER RICHARD KISSANE, Shield No. 30366, 105th Precinct, 92-08 222nd St, Queens Village, NY 11428

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Bronx Expressway, The Bronx, NY 10457

ATTORNEY'S VERIFICATION

CARY LONDON, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
July 25, 2022

Cary London
CARY LONDON